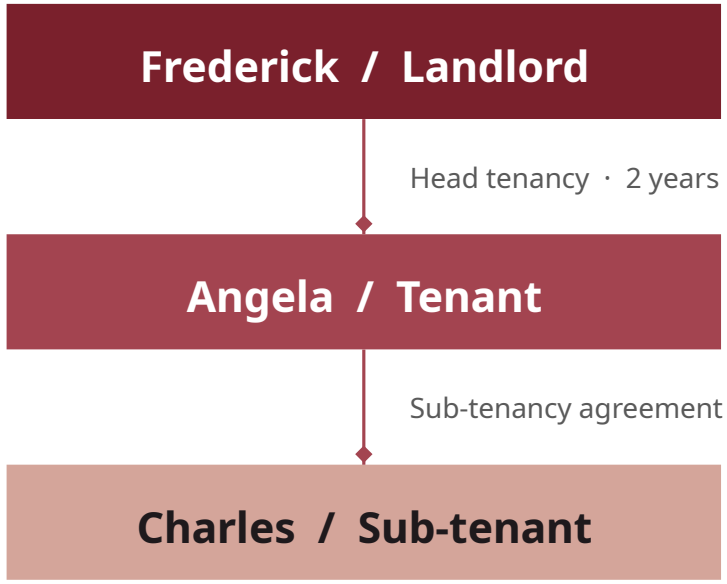
Facts, Relationships & Issues

01 / LEGAL RELATIONSHIPS



No direct contractual relationship between Frederick and Charles

TIMELINE

1 DEC · PREVIOUS YEAR
Tenancy commenced

1 SEP · CURRENT YEAR
Noise complaint received

02 / ISSUES TO BE ADDRESSED

(a) **FORFEITURE BEFORE EXPIRY**

Can Frederick lawfully forfeit the tenancy and recover possession before expiry?

A breach must be established, forfeiture clauses complied with, and the required notice validly served.

(b) **RENEWAL AT EXPIRY**

Can Angela enforce a renewal of the tenancy upon expiry of the 2-year term?

The key question is whether the new rent can be validly determined. The noise complaint is background only.

Arguments & Conditional Conclusions

Frederick's Position

Landlord — seeking to recover possession

1. **Subletting breach**
   Angela sublet to Charles without consent, potentially violating the tenancy agreement.
2. **Noise nuisance**
   Late-night noise complaints indicate an alleged breach of quiet enjoyment / tenant-like use covenants.
3. **Forfeiture right**
   If the lease contains a forfeiture clause, Frederick may lawfully terminate early and re-enter.
4. **Renewal negotiation**
   At expiry, Frederick need not renew on the same terms; the new rent is negotiable.

Angela's Position

Tenant — seeking to remain / renew

1. **No proven breach**
   A complaint alone is not proof; noise must be substantiated and material.
2. **Subletting may be permitted**
   The tenancy agreement may allow subletting, or consent may have been implied.
3. **Procedural requirements**
   Frederick must meet all statutory notice requirements; defective procedure invalidates forfeiture.
4. **Renewal right**
   A renewal provision, or a valid way to determine fair new rent, may support enforcement of renewal.

CONDITIONAL CONCLUSIONS

(a) Recovery requires a proven breach and strict compliance with contractual and statutory forfeiture requirements.

(b) Renewal turns on whether new rent can be validly determined; the noise complaint is not decisive.